

25CHCV03617 25CHCV03617

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-06-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C06%2F26%2F2026

Source SHA-256: e482a3eaffa927557927b9e4568d1724c0db6c81c87398588df8fc7711eb470d

Case Number: 25CHCV03617 Hearing Date: June 26, 2026 Dept: F43

Dept. F43

Hearing Date: 06-26-26

Case # 25CHCV03617, Shearman v. Sun

Solar Energy Solutions, Inc., et al.

Trial Date: None set.

MOTION TO QUASH

SUBPOENAS

MOVING PARTY: Plaintiff Avery Nicholas Shearman

RESPONDING PARTIES: Defendants Sun Solar Energy Solutions, Inc.

and Arturo Jr. Montes

RELIEF REQUESTED

Order quashing defendants' subpoenas served

on May 7, 2026 to Kaiser Foundation Hospital/SCPMG ROI Unit, So. California

Permanente Medical Group-Billing, Kaiser Foundation Hospital/SCPMG-Radiology

Unit, and Allstate Insurance Company

RULING: Motion is granted in part as described below

in Sections B and C.

SUMMARY OF ACTION

This personal injury action arises out of a two-vehicle collision that occurred on October 24, 2023. Plaintiff Avery Nicholas Shearman (Plaintiff) alleges defendant Arturo Jr. Montes rearended Plaintiff while Monte was acting within the course and scope of his employment with defendant Sun Solar Energy and was operating Sun Solar's vehicle. On October 8, 2025, Plaintiff filed a complaint, asserting motor vehicle and negligence claims against both defendants and seeking damages for mental and physical injuries. Defendants filed a joint answer on January 2, 2026.

Plaintiff served verified responses to Defendants' first set of form interrogatories on January 28, 2026. (Declaration of Miro Minasian ¶ 6.) The response identified injuries attributed to the incident and the affected body part: headaches radiating to the right eye; neck pain radiating to both hands, legs, shoulders, and the scapular region; mid-back pain; low back pain radiating into the buttocks and hips; pain affecting both wrists and forearms; along with anxiety and emotional distress. (Id. ¶¶ 6-7.)

On January 30, 2026, defense counsel served subpoenas duces tecums on several entities, including Kaiser Foundation Hospital/SCPMG ROI Unit, So. California Permanente Medical Group-Billing, Kaiser Foundation Hospital/SCPMG-Radiology Unit, and Allstate Insurance Company. (04/20/26 Minute Order at p. 2.) The subpoenas sought certain medical records, insurance documents, and correspondences related to Plaintiff. Plaintiff objected to the subpoenas and moved to quash or modify the subpoenas. The court granted the motion in part but did not address the Allstate subpoena.

On April 27, 2026, defense counsel served plaintiff's counsel with notices to consumer and new subpoenas duces tecum for four of the same entities: Kaiser Foundation Hospital/SCPMG ROI Unit, So. California Permanente Medical Group-Billing, Kaiser Foundation Hospital/SCPMG-Radiology Unit, and Allstate Insurance Company. (Declaration of Miro Minasian ¶ 4, Exh. 1 at pp. 6, 10, 14, 18; Declaration of Jay M. Borgeson ¶¶ 2-6, Exhs. 1-4.) The subpoenas seek medical records, billing records, and insurance investigation records concerning Plaintiff. The subpoenas were later served on the four entities on May 7, 2026, seeking production of records for copying on May 28,

2026. (Borgeson Decl. ¶¶ 7-10, Exhs. 5-8.) On May 12, 2026, Plaintiff served an objection to the subpoenas and a letter discussing issues with the subpoenas. (Minasian Decl. ¶ 5, Exh. 2.)

On May 20, 2026, defense counsel's paralegal informed plaintiff's counsel that it advised service entity Ronsin to withdraw the subpoenas and that defense counsel would amend the subpoenas and limit them to claimed body parts in Plaintiff's response to form interrogatory number 6.2 and to a timeframe of five years prior to the date of the alleged incident. (Minasian Decl., Exh. 3 at p. 2.) The moving papers do not state whether the subpoenas were withdrawn and reissued with further limitations as represented in defense counsel's opposing declaration. Plaintiff's counsel's paralegal offered to do a first look agreement for the Kaiser Permanent records, but defense counsel was not open to such an agreement. (Borgeson Decl., Exh. 3 at p. 1.)

On May 26, 2026, Plaintiff filed the subject motion to quash the subpoenas Defendants served on Kaiser Foundation Hospital/SCPMG ROI Unit, So. California Permanente Medical Group-Billing, Kaiser Foundation Hospital/SCPMG-Radiology Unit, and Allstate Insurance Company on April 27, 2026. In the alternative, Plaintiff asks the court to modify the subpoenas and limit the request to relevant body parts identified by Plaintiff response to Form Interrogatory No. 6.2.

Defendants filed a late opposition on June 15, 2026, challenging Plaintiff's objections and seeking \$1,125 in monetary sanctions against Plaintiff for misusing the discovery process.[1]

Plaintiff replied on June 18, 2026.

ANALYSIS

A. Quashing a Subpoena for the Production of Business Records

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person

described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

"Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. No witness or deposition officer shall be required to produce personal records after receipt of notice that the motion has been brought by a consumer, or after receipt of a written objection from a nonparty consumer, except upon order of the court in which the action is pending or by agreement of the parties, witnesses, and consumers affected." (Code Civ. Proc., § 1985.3, subd. (g).)

B. Plaintiff's Procedural Arguments

Notice to Consumer and Timing and Notice
Requirements under Section 1985.3, subdivision (b)

Plaintiff claims the subpoenas fail to provide Notice to Consumer to third parties whose personal, private, privileged, and sensitive information and records are sought.
Plaintiff references insureds and policyholders.

Before the date for production of personal records, the subpoenaing party must serve on the consumer whose records are being sought, a copy of the subpoena duces tecum and a proof of service as indicated in paragraph (1) of subdivision (c). (Code Civ. Proc., § 1985.3, subd. (b).) The notice must be served: (1) To the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record. . . . (2) Not less than 10 days prior to the date

for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail. (3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail. (Code Civ. Proc., § 1985.3, subd. (b)(1)-(3).)

Other than Plaintiff, it is unclear which third parties' personal, private, privileged, and sensitive information and records are sought.

The moving papers demonstrate four notices to consumer and copies of the subpoenas were served on plaintiff's counsel by mail on April 27, 2026. (Minasian Decl. ¶ 4, Exh. 1 at pp. 6, 10, 14, 18; Borgeson Decl. ¶¶ 2-6, Exhs. 1-4.) The subpoenas and notices to consumer were then electronically served on the four entities on May 7, 2026, listing a production date of May 28, 2026. (Borgeson Decl. ¶¶ 7-10, Exhs. 5-8.)

Because the notices were served on plaintiff's counsel one month before the production date and over five days before service on the four entities, Plaintiff's argument lacks merit.

//

Timing and Notice Requirements in Code of Civil Procedure sections 2020.410

"A deposition subpoena that commands only the production of business records for copying . . . shall be directed to the custodian of those records or another person qualified to certify the records. It shall command compliance in accordance with Section 2020.430 on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later." (Code Civ. Prov., § 2020.410, subd. (c).)

As mentioned above, the subpoenas were served electronically on May 7, 2026, 21 days before the requested production date of May 28, 2026. (Borgeson Decl. ¶¶ 7-10, Exhs. 5-8.) Therefore, the subpoenas were

timely served pursuant to Code of Civil Procedure section 2020.410, subdivision (c).

"If, under Section 1985.3 . . . , the one to whom the deposition subpoena is directed is a witness, and the business records described in the deposition subpoena are personal records pertaining to a consumer, the service of the deposition subpoena shall be accompanied either by a copy of the proof of service of the notice to the consumer described in subdivision (e) of Section 1985.3, or subdivision (b) of Section 1985.6, as applicable, or by the consumer's written authorization to release personal records described in paragraph (2) of subdivision (c) of Section 1985.3, or paragraph (2) of subdivision (c) of Section 1985.6, as applicable." (Code Civ. Proc., § 2020.410, subd. (d).) "Every copy of the subpoena duces tecum and affidavit, if any, served on a consumer or his or her attorney in accordance with subdivision (b) shall be accompanied by a notice, in a typeface designed to call attention to the notice, indicating that (1) records about the consumer are being sought from the witness named on the subpoena; (2) if the consumer objects to the witness furnishing the records to the party seeking the records, the consumer must file papers with the court or serve a written objection as provided in subdivision (g) prior to the date specified for production on the subpoena; and (3) if the party who is seeking the records will not agree in writing to cancel or limit the subpoena, an attorney should be consulted about the consumer's interest in protecting his or her rights of privacy. If a notice of taking of deposition is also served, that other notice may be set forth in a single document with the notice required by this subdivision." (Code Civ. Proc., § 1985.3, subd. (e).)

Each of the notices to consumer include the notices outlined in Section 1985.3, subdivision (e).

(Borgeson Decl., Exh. 1 at pp. 1, 3, Exh. 2 at pp. 1, 3, Exh. 3 at pp. 1, 3, and Exh. 4 at pp. 1, 4.)

Therefore, Plaintiff's procedural arguments fail.

C. Plaintiff's
Objections

The subpoenas served on Kaiser Foundation Hospital/SCPMG
ROI Unit, So. California Permanente Medical Group-Billing, and Kaiser

Foundation Hospital/SCPMG-Radiology Unit seek the following:

Any and all health care provider records from the following provider, including, but not limited to x-rays, billing records (including complete account payment history), progress notes, nurses notes, physician notes, correspondence histories, operative reports, diagnoses letters of condition, reports of current and future condition, and other information, regarding Avery Nicholas Shearman, DOB: 1/8/2000, SS#: XXX-XX-9363, records dating from 01/01/2018 to present. To include entirety of files, including records from any outside providers.

The subpoena served on Allstate Insurance Company seek the following:

A copy of policy and policy declarations, including, all claim information; any health care provider records (including Med Pay information, payment and billing); and general accident investigation files (including correspondence, vehicle photographs, party and witness statements, appraisals, repair records and invoices) pertaining to Avery Nicholas Shearman, DOB: 1/8/2000, SS#: XXX-XX-9363, records dating from 01/01/2018 to present. Policy No. 924314173 or any others. Note: The request also relates to any health care or other provider records contained within these files.

Overbroad and Privacy Objections

Plaintiff contends the subpoenas are facially overbroad because they seek all medical files and financial records, including those from outside providers and seek records unrelated to Plaintiff's injuries, conditions, and body parts at issue in the present case. Plaintiff also claims the subpoenas violate his right to privacy in his medical records and insurance documents.

In opposition, Defendants claim the subpoenas are limited to five years prior to the date of the alleged incident (October 24, 2018). But the subpoenas state Defendants seek records from January 1, 2018 to present. (Borgeson Decl. ¶ 11, Exh. 1 at p. 4, Exh. 2 at p. 4, Exh. 3 at p. 4, Exh. 4 at p. 2.) According to Defendants, the prior records will help determine what injuries were caused by the vehicle collision, particularly medical imaging which indicates age-related spinal issues.

Furthermore, Defendants assert that Dr. Khounganian, who recommended Plaintiff's spinal surgery at C3-C4, is presently being sued for issuing exaggerated and unnecessary medical bills.

The requested records are necessary for Defendants to determine the injuries that resulted from the accident and the opinions and diagnoses of Plaintiff's medical providers.

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternative that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 [citing Hill v. Nat'l Collegiate Athletic Ass'n (1994) 7 Cal.4th 1, 35].) The balancing test outlined in Hill applies whenever lesser privacy interests are at stake. (Id. at 556.) The court only applies the higher "compelling interest" standard to justify "an obvious invasion of an interest fundamental to personal autonomy." (Id.) A party must meet the "compelling interest" standard to discover an opposing party's medical information. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1015, 1020 (Davis).)

Generally, a Plaintiff who files a lawsuit for damages arising from a personal injury puts the injury and its related body parts in controversy. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 389-390 (Vinson).)

However, the privacy right waiver created by filing a lawsuit "must be narrowly rather than expansively construed."

(Id. at p. 842.) "[A]n implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit." (Id.)

Here, the "compelling interest" standard applies because of Plaintiff's fundamental interest and personal autonomy to his medical records and financial records.

The medical records subpoenas sent to the Kaiser and

Permanente entities are overly broad in time because they seek records from January 1, 2018 through present, rather than from October 24, 2018 through present. The subpoenas are also overbroad in scope because they seek any and all records regardless of the records' relation to Plaintiff's claimed injuries and affected body parts. The phrases concerning the record of "any outside providers" and "outsiders contained within this provider's file" tends to be overbroad and leads to the possibility that irrelevant records (including the records of other individuals) could be wrongfully disclosed.

Defense counsel claims that in a separate case, Kaiser sent him a letter stating it could not produce records based on body parts, medical conditions, or symptoms because it "would require a review of the medical records in question by medical experts who would have to determine if care delivered and documented in the record meets the specified criteria." (Borgeson Decl. ¶ 12, Exh. 9 [October 8, 2025, Letter from Kaiser's custodian of medical records, stating "Records requests can be produced limited to date range, provider name(s), and department type(s)".].) Defendants do not state whether such a letter was received from Kaiser in this matter and whether the subpoena in the other matter mirrors the language of the subpoenas issued in this matter.

The court notes that plaintiff's counsel offered to do a "First look Agreement." (Reply at pp. 6:27-7:6.) Under such an agreement, the court presumes plaintiff's counsel would receive the records, redact them and remove protected and unrelated documents, prepare a privilege log, and then send the log along with the remaining documents to defense counsel. However, Plaintiff has provided no details concerning the terms of such an agreement.

Regardless, the court finds that Defendants have shown that they have a compelling interest in medical records that predate the incident based on concerns regarding Dr. Khounganian issuing exaggerated or unnecessary medical bills. In absence of letter from Kaiser concerning the inability to provide the requested documents as limited by body and injury, the medical bills and records must be limited to the body parts, organs, organ systems, and other injuries that Plaintiff stated in response to from interrogatory number 6.2. Furthermore, the court finds that narrowing the time period to five

years before the incident is sufficient to determine whether any of the injuries are age-related and were caused prior to the alleged collision.

Thus, the court sustains in part the overbroad objection to the Kaiser and So. California Permanente subpoenas and overrules in part the privacy objections.

As for the Allstate insurance records subpoena, the court finds the subpoena is also overly broad in time and scope and may seek some privileged information. The subpoena requests information prior to the date of the incident rather than documents from the date of the incident through present. Other than the policy that was in effect at the time of the incident, it is unclear why Defendants require documents which pre-date the October 24, 2023, incident. Thus, the requested documents must be limited to the policy and policy declarations that were in effect at the time of the incident (October 24, 2023) and those insurance records generated from the date of the incident to the present, that are related to claims, injuries, repairs, and investigations concerning the alleged incident on October 24, 2023.

Therefore, the court sustains in part the overbroad objection to the Allstate subpoena and overrules in part Plaintiff's privacy objection to the Allstate subpoena.

Physician-Patient
Privilege and the Psychotherapist-Patient Privilege

Plaintiff contends that the subpoenas violate the physician-patient privilege and the psychotherapist-patient privilege because they are not narrowly tailored to address medical, financial, and insurance records that are related to this case, the October 24, 2023, incident, the alleged injuries, and the body parts at issue.

California's Constitution protects an individual's right to privacy. (Davis, supra, 7 Cal.App.4th at p. 1013.) The right to privacy extends to medical records. (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1198.) Communications between patients and their physicians or psychotherapists are protected by statutory privileges. (Evid. Code, §§ 994, 1014.) The physician-patient privilege does not

exist if the communication sought is “relevant to an issue concerning the condition of the patient if such issue has been tendered by . . . the patient.” (Evid. Code, § 996, subd. (a).) In the constitutional privacy context, “[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (Williams v. Superior Court, supra, 3 Cal.5th at p. 552.)

As stated above, filing a lawsuit for personal injury damages and providing or alleging a list of injuries stemming from an alleged incident puts the injuries in controversy because they are relevant to the underlying issues. (Vinson, supra, 43 Cal.3d at pp. 389-390.) However, Plaintiff has not waived his physician and psychotherapist privileges by filing this action. “[W]hile the filing of a lawsuit may implicitly bring about a partial waiver of one’s constitutional right of associational privacy, the scope of such ‘waiver’ must be narrowly rather than expansively construed.” (Britt v. Superior Court (1978) 20 Cal.3d 844, 859 (Britt).) A plaintiff may waive the privilege as to prior medical or mental health records in an action for recovery on personal injury or for emotional distress. (Id. at p. 863-864.)

This is a personal injury action and Plaintiff has alleged sustaining mental and physical injuries as well as medical expenses, property damages, and loss of earnings. (Compl. at p. 5.)

Plaintiff also responded to Defendants’ form interrogatory number 6.2, listing injured body parts and injuries sustained from the alleged vehicle collision: headaches radiating to the right eye; neck pain radiating to both hands, legs, shoulders, and the scapular region; mid-back pain; low back pain radiating into the buttocks and hips; pain affecting both wrists and forearms; along with anxiety and emotional distress. (Minasian Decl.

¶ 7.)

"[A]lthough in seeking recovery for physical and mental injuries plaintiffs have unquestionably waived their physician-patient and psychotherapist-patient privileges as to all information concerning the medical conditions which they have put in issue, [the] waiver extends only to information relating to the medical conditions in question, and does not automatically open all of a plaintiff's past medical history to scrutiny." (Britt, supra, 20 Cal.3d at p. 849.)

Thus, Plaintiff has waived the physician-patient privilege and the psychotherapist privilege as to medical records from the date of the incident (October 24, 2023) through the present. Although Defendant seeks communications that occurred prior to the alleged incident, these communications are irrelevant to Plaintiff's injuries which stem from the alleged accident.

Therefore, the court overrules in part Plaintiff's physician-patient and psychotherapist-patient privilege objections as to medical records, financial records, and insurance records dating from October 24, 2023 through present. The objection is sustained in part for medical, financial, and insurance records pre-dating the October 24, 2023 incident.

Privacy
and the Insurance Information Privacy Act

California's Insurance Information and Privacy Protection Act (IIPPA) establishes a general rule that "[a]n insurance institution, agent, or insurance-support organization shall not disclose any personal or privileged information about an individual collected or received in connection with an insurance transaction[.]" (Ins. Code, § 791.13.) However, the statute expressly carves out exceptions. Disclosure is permitted when it is in response to a facially valid administrative or judicial order, including a search warrant or subpoena. (Ins. Code, § 791.13, subd. (h).) Disclosure is also permitted when it is otherwise permitted or required by law. (Ins. Code, § 791.13, subd. (g).) The IIPPA applies to, and restricts, information gathering practices and disclosures of information by insurers. It does not create a privilege against discovery by an insured party who is a party to a lawsuit. (Irvington-Moore, Inc. v.

Superior Court (1993) 14 Cal.App.4th 733, 741.)

The IPPA defines personal information broadly to mean “any individually identifiable information gathered in connection with an insurance transaction from which judgments can be made about an individual's character, habits, avocations, finances, occupation, general reputation, credit, health, or any other personal characteristics,” including “an individual's name and address and ‘medical record information.’”

(Ins. Code, § 791.02, subd. (s).)

However, this does not include privileged information. (Id.) Privileged information is “any individually identifiable information that both:

(1) Relates to a claim for insurance benefits or a civil or criminal proceeding involving an individual. [and] (2) Is collected in connection with or in reasonable anticipation of a claim for insurance benefits or civil or criminal proceeding involving an individual.” (Ins. Code, § 791.02, subd. (v).)

Here, Plaintiff claims that IPPA bars production of his personal and privileged information and that of third parties not related to or included in this action.

First, Plaintiff fails to identify any specific third parties who would be affected. Even if the court were to sustain the objection, insurance policies are not privileged documents. (Code Civ. Proc., § 2017.210 [“A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute.”].)

Furthermore, Plaintiff fails to provide an extensive argument concerning how the IPPA serves as a blanket bar on the requested insurance documents. Considering the court previously mentioned document production should be limited to the policy in place on the date of the incident and all other subsequent insurance documents related to the October 24, 2023, incident, injuries, and injured body parts, the court does not understand what further limits Plaintiff seeks

pursuant to the IIPPA.

Therefore, the court overrules the objection based on the IIPPA.

Vague,
Ambiguous, and Unintelligible

After reviewing all four subpoenas, the court finds that the subpoenas concisely state the categories of the documents sought, from whom they are sought, the scope of time, and that the documents should be limited to Plaintiff based on his date of birth, social security number, and, in the case of the insurance records, his Policy Number.

Therefore, the court overrules the vague, ambiguous, and unintelligible objection to the medical-financial records subpoenas and the insurance records subpoena.

//

Settlement
Negotiations Privilege and Exclusion Rule

Plaintiff objects to the subpoenas as violating the settlement negotiations exclusion rule.

Although settlement discussions and negotiations are inadmissible as evidence at trial, the scope of discovery is non-privileged relevant information which is either admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (Evid. Code, § 1152, subd. (a); Code Civ Proc., § 2017.010.) “For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement[.]” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 591, citation omitted.)

Therefore, the court overrules the “settlement negotiations” objection.

Unduly Burdensome, Harassing, and Oppressive.

Plaintiff asserts that the subpoenas are unduly burdensome, harassing, and oppressive because they seek documents and records that are not relevant to the subject matter of this lawsuit and not reasonably calculated to lead to the discovery of admissible evidence.

Other than the subpoenas being overbroad in time and scope, Plaintiff fails to demonstrate how the subpoenas are unduly burdensome, harassing, or oppressive, especially considering they do seek information which is directly relevant to the alleged vehicle collision and resulting damages.

Therefore, the court overrules Plaintiff's "unduly burdensome, harassing, and oppressive" objection.

Collateral Source Rule

Plaintiff claims the subpoenas violate the collateral source rule without providing any substantive analysis to support the objection.

"The collateral source rule precludes certain deductions against otherwise recoverable damages, but [sic] does not expand the scope of economic damages to include expenses the plaintiff never incurred." (Howell v. Hamilton Meats & Provisions, Inc. (2011) 52 Cal.4th 541, 549.)

Because Plaintiff has identified no alternative sources from which Defendants could determine the extent of her injuries, the costs of medical treatment, the payments made for medical treatment, and insurance payments made for the treatment, the court overrules the "collateral source rule" objection.

//

Attorney-Client Privilege

Plaintiff raises the attorney-client privilege as to records containing or constituting reports and communications he made to his insurer in anticipating litigation.

Plaintiff provides no analysis on this issue.

If the subpoenas seek responsive documents to which Plaintiff believes the attorney-client privilege applies, Plaintiff must provide the court with sufficient factual information for the subpoenaing party and the court to evaluate whether the privilege claim has merit. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 [requiring a party to file a compliant privilege log identifying with particularity each privileged document].)

Plaintiff has not done so here.

If Plaintiff believes the attorney-client privilege applies to specific documents, Plaintiff must serve Defendants with a privilege log that complies with *Catalina Island Yacht Club v. Superior Court*. (*Catalina Island*, supra, 242 Cal.App.4th at p. 1130 [stating “the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted”].)

CONCLUSION and ORDER

The court grants in part Plaintiff’s motion to quash Defendants’ deposition subpoenas served on May 7, 2026 to Kaiser Foundation Hospital/SCPMG ROI Unit, So. California Permanente Medical Group-Billing, Kaiser Foundation Hospital/SCPMG-Radiology Unit, and Allstate Insurance Company.

Plaintiff to give notice.

[1] Oppositions must be filed and served

no later than nine (9) court days before the motion hearing. (Code Civ. Proc., § 1005, subd. (b).) Due to the court holiday on June 19, 2026,

the opposition deadline was June 12, 2026.